



CHAPTER xxxii

An Act to confer further powers in connection with the tunnel authorised by the Mersey Tunnel Acts 1925 to 1933 to amend those Acts in certain respects and for other purposes. [30th July 1949.]

WHEREAS by the Mersey Tunnel Act 1925 the lord mayor aldermen and citizens of the city of Liverpool and the mayor aldermen and burgesses of the borough of Birkenhead (hereinafter respectively referred to as "the Liverpool Corporation" and "the Birkenhead Corporation" and collectively as "the corporations") were authorised to construct a tunnel for vehicular and pedestrian traffic under the river Mersey between the city of Liverpool and the county borough of Birkenhead:

And whereas by the Mersey Tunnel Acts 1927 and 1928 alterations of the said tunnel were authorised:

17 & 18 Geo. 5.
c. xciii.
18 & 19 Geo. 5.
c. iii.

And whereas by section 22 of the Mersey Tunnel Act 1933 (as amended by the Mersey Tunnel (Extension of Time) Order 1942 the Mersey Tunnel (Extension of Time) Order 1945 and the Mersey Tunnel (Extension of Time) Order 1946) it is provided that the Liverpool Corporation or the Birkenhead Corporation shall not earlier than in the session of 1946 and not later than in the session of 1949 promote a Bill in Parliament proposing or affording an opportunity for a revision by such Bill of the provisions of sections 8 9 and 10 of the said Act:

23 & 24 Geo. 5.
c. xxxix.

And whereas it is expedient that certain of the financial and other provisions of the said Acts should be amended as by this Act provided:

And whereas it is expedient that further powers be conferred on the corporations as in this Act contained and that the other provisions of this Act be enacted:

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

23 & 24 Geo. 5. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act c. 51. 1933 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1. This Act may be cited as the Mersey Tunnel Act 1949 and the Mersey Tunnel Acts 1925 to 1933 and this Act may be together cited as the Mersey Tunnel Acts 1925 to 1949.

Interpretation.

2. In this Act unless the subject or context otherwise requires the expressions—

“ the Liverpool Corporation ” means the lord mayor aldermen and citizens of the city of Liverpool acting by the council of that city ;

“ the Birkenhead Corporation ” means the mayor aldermen and burgesses of the borough of Birkenhead acting by the council of that borough ;

“ the corporations ” means the Liverpool Corporation and the Birkenhead Corporation ;

“ the Act of 1925 ” means the Mersey Tunnel Act 1925 ;

“ the Act of 1933 ” means the Mersey Tunnel Act 1933 ;

“ the tunnel ” means the tunnel and works authorised by the Mersey Tunnel Acts 1925 to 1933 ;

“ the Joint Committee ” means the Mersey Tunnel Joint Committee incorporated by the Act of 1925.

As to closing
tunnel.

3. The Joint Committee may whenever in their opinion it is necessary so to do either in case of emergency or for the purposes of the maintenance repair or improvement of the tunnel wholly or partially close the tunnel or any portion thereof :

Provided that except in case of emergency the Joint Committee shall not close the tunnel or any portion thereof without giving not less than seven days' previous notice—

(i) by advertisement in some newspaper or newspapers circulating in the city of Liverpool and the borough of Birkenhead ; and

(ii) by posting or arranging for the posting of suitable notices at the entrances to the tunnel and in some conspicuous place in or near the city of Chester such posted notices to remain posted so long as the tunnel is closed.

4.—(1) The power conferred by subsection (1) of section 74 (Byelaws) of the Act of 1925 of fixing a speed limit shall be construed as enabling the Joint Committee to fix a maximum speed limit and a minimum speed limit or either of such speed limits. Amendments of section 74 of Act of 1925.

(2) The said section 74 shall be read and have effect as if the following subsection were substituted for subsection (2) of that section:—

“(2) (a) All byelaws from time to time made in pursuance of this section shall be made under and according to the provisions of sections 250 and 251 of the Local Government Act 1933 as if the Joint Committee were a local authority within the meaning of that Act and the provisions of section 252 of the said Act shall apply to such byelaws ;

(b) For the purposes of the said sections 250 to 252 in their application to this section the Minister of Transport shall be the confirming authority.”

5. The Act of 1925 shall be read and have effect as if— Amendment of Fifth Schedule to Act of 1925.

(a) the following paragraph were substituted in Part I of the Fifth Schedule thereto for paragraph (2) of that part of the said schedule:—

“(2) Each constituent authority shall at their annual meeting held in each succeeding year appoint the members of the Joint Committee whom they are by this Act authorised to appoint to hold office subject to paragraph (8) hereof until the annual meeting in the following year ” ;

(b) the following paragraph were substituted in Part II of the said Fifth Schedule for paragraph (5) of that part of the said schedule:—

“(5) Subject to the provisions of this Act at their first meeting and subsequently at their first meeting held after the annual meeting of each constituent authority in each succeeding year the Joint Committee shall appoint a chairman and vice-chairman to hold office until the annual meeting in the following year.”

6. The members of the Joint Committee holding office as such at the date of the passing of this Act shall subject to the provisions of the Fifth Schedule to the Act of 1925 (as amended by this Act) continue to hold such office until the annual meeting of the constituent authority by which they were respectively appointed to be held in the year one thousand nine hundred and fifty. Term of office of existing members of Joint Committee.

Amendment
of section 83
of Act of
1925.

7. The Mersey Tunnel Acts 1925 to 1949 shall be read and have effect as if in section 83 of the Act of 1925 as set out in section 9 of the Act of 1933 the following proviso were substituted for the first proviso to subsection (1) of the said section 83:—

“Provided that in any half-year in which the aggregate amount of such tolls collected shall exceed one hundred and one thousand five hundred pounds an amount equal to such excess after deducting therefrom—

- (i) the cost of collecting the said tolls in that half-year ;
and
- (ii) the appropriate amount of the income tax (if any) paid or payable (by deduction or otherwise) by the Joint Committee ; and
- (iii) any sums set aside in that half-year and paid into any renewals fund or reserve fund which the Joint Committee may be required or authorised to provide ;

may subject to the next following proviso be carried to and form part of the general rate fund of the city and the general rate fund of the borough respectively in the proportion which the amount which would be produced by a general rate of one penny in the pound in the city bears to the amount which would be produced by a general rate of one penny in the pound in the borough.”

Amendment
of section 10
of Act of 1933.

8. Section 10 (Renewals fund) of the Act of 1933 shall be read and have effect as if the words “seven thousand five hundred pounds” and the words “five hundred thousand pounds” were respectively substituted for the words “three thousand five hundred pounds” and “two hundred thousand pounds.”

Amendment
of section 11
of Act of 1933.

9. Section 11 (Reserve fund) of the Act of 1933 shall be read and have effect as if the words “two thousand five hundred pounds” and “two hundred thousand pounds” were respectively substituted for the words “one thousand five hundred pounds” and “one hundred thousand pounds.”

Adjustment of
liabilities of
corporations.

10. It shall be lawful for the corporations at any time and from time to time to enter into and carry into effect agreements whereby either party shall undertake to bear in whole or in part and for so long as may be specified in such agreements the liabilities under or arising out of the operation of the Mersey Tunnel Acts 1925 to 1949 of the other party or whereby any such agreement shall be varied.

11. The Liverpool Corporation for and on behalf of the corporations or for and on behalf of the Joint Committee may (in addition to any moneys which they are now authorised to borrow or which they may hereafter be authorised to borrow) borrow at interest without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Act and all moneys so borrowed shall be chargeable on the "revenues of the Corporation" as defined by the Liverpool Corporation Act 1921 and shall be repaid within such period as the corporations may determine not exceeding five years from the passing of this Act.

Power to
Liverpool
Corporation
to borrow and
repayment of
borrowed
moneys.

11 & 12 Geo. 5.
c. lxxiv.

12. The Minister of Health may hold such inquiries as he may consider necessary in regard to the exercise of any powers or duties imposed upon him and the giving of any consent or approval or the making of any order under the Mersey Tunnel Acts 1925 to 1949 and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply accordingly.

Inquiries by
Minister of
Health.

13. The Minister of Transport may hold such inquiries as he may consider necessary in regard to the exercise of any powers or duties imposed upon him and the giving of any consent or approval or the making of any order or the confirmation of any byelaw under the Mersey Tunnel Acts 1925 to 1949 and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply accordingly.

Inquiries by
Minister of
Transport.

14. The sections of and schedule to the Act of 1925 which are mentioned in the first column of the schedule to this Act are hereby repealed to the extent mentioned in the second column of that schedule.

Repeals.

15. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Joint Committee out of moneys to be borrowed by the Liverpool Corporation for the purposes of this Act.

Costs of Act.

The SCHEDULE referred to in the foregoing Act

PROVISIONS OF ACT OF 1925 REPEALED

Section or schedule of Act	Extent of repeal
Section 64 (Revision of Birkenhead ferry tolls).	The proviso to subsection (1).
Section 66 (Revision of tolls) ...	The proviso to subsection (1).
Section 74 (Byelaws)	The whole of subsection (2) and in subsection (3) all words which follow the words "mechanically propelled vehicles."
Section 79 (Accounts of Joint Committee).	In subsection (1) the words "subject to the provisions of the section of this Act of which the marginal note is 'Application of tolls'."
Section 88 (As to inquiries &c. by Minister of Transport).	The whole section.
Section 89 (Inquiries by Minister of Health).	The whole section.
Fifth Schedule	The whole of paragraph (2) of Part I and of paragraph (5) of Part II of the schedule.

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